

24STCV06415 24STCV06415

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Case Number: 24STCV06415 Hearing Date: August 7, 2026 Dept: 224

Defendant's demurrer is SUSTAINED in its entirety, WITHOUT LEAVE TO AMEND. Defendant's motion to strike is DENIED as moot.

Plaintiff's complaint is dismissed with prejudice.

Background

Plaintiff Pirus Group, Inc. (Plaintiff) filed its complaint in this action on March 14, 2024 against defendant Goldie Marshall (Defendant), asserting claims for specific performance and breach of contract. The complaint was subsequently amended to name Defendant both individually and as personal representative of the Estate of Henry Darshad. The parties' dispute arises out of a Purchase Agreement for a property located at 8620-8624 Holloway Dr., West Hollywood 90069 (the Property), which Plaintiff alleges Defendant agreed to sell and Plaintiff to buy.

On April 4, 2025, the Court sustained Defendant's demurrer to both causes of action, without leave to amend. That ruling was reiterated in a minute order dated January 27, 2026.

On February 6, 2026, Plaintiff filed a first amended complaint (FAC), asserting new claims for (1) fraud and (2) breach of agreement, the latter identified as for breach of "oral agreement" in the caption of the FAC but breach of "written contract/agreement" in the body of the FAC.

Defendant now demurs to the FAC, arguing Plaintiff has recast its same deficient allegations in different terms and remains unable to state a claim. Plaintiff opposes.

Legal Standard

Where pleadings are defective, a party may raise the defect by way of a demurrer. (Coyne v. Krempels (1950) 36 Cal.2d 257, 262.) A demurrer for sufficiency tests whether the complaint alleges facts sufficient to constitute a cause of action. (Cal. Code Civ. Proc. § 430.10; Young v. Gannon (2002) 97 Cal.App.4th 209, 220.) When considering a demurrer, a court reads the allegations stated in the challenged pleading liberally and in context, and "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (Serrano v. Priest (1971) 5 Cal.3d 584, 591.) Put differently: for purposes of demurrer, the court treats all facts alleged – but only the facts alleged – in the complaint as true. (Picton v. Anderson Union High School District (1996) 50 Cal.App.4th 726, 732.) "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Discussion

The demurrer is sustained for a second time without leave to amend.

Plaintiff's first cause of action is barred by the economic loss rule on its face. It is an action for breach of the purported sale contract that Plaintiff depended on in the first iteration of its complaint.

"[T]he [economic loss rule] functions to bar claims in negligence for pure economic losses in deference to a contract between litigating parties." (Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905, 922.) The rule endeavors to " 'prevent[] the law of contract and the law of tort from dissolving one into the other.' [Citation.]" (Robinson Helicopter Co., Inc. v. Dana Corp. (2004) 34 Cal.4th 979, 988.) "Not all tort claims for monetary losses between contractual parties are barred by the economic loss rule. But such claims are barred when they arise from — or are not independent of — the parties' underlying contracts." (Sheen, supra, 12 Cal.5th, at p. 923.)

Plaintiff's first cause of action depends entirely on Defendant's purported breach of a contract. It does not articulate damages falling outside the scope of Defendant's purported breach. The claim does not sound separately in tort.

Plaintiff second cause of action for breach of agreement (oral or written) fails for the same reasons stated in the Court's ruling regarding Plaintiff's initial complaint. There are various other defects in the second cause of action — as, for instance, uncertainty, given that the FAC identifies the character of the agreement inconsistently and refers to an "Exhibit A" for a written agreement not attached to the FAC. (See FAC, ¶ 24.) The introduction of increased uncertainty into an amended pleading suggests that any further changes to this cause of action would be futile — and, in any case, leave to amend has already been denied.

Conclusion

Defendant's demurrer is SUSTAINED in its entirety WITHOUT LEAVE TO AMEND. On this basis, Defendant's motion to strike is DENIED as moot.

The Court dismisses the First Amended Complaint with prejudice this date.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.